

21STCV40738 21STCV40738

County: los-angeles

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Case Number: 21STCV40738 Hearing Date: July 20, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT 17

TENTATIVE

RULING

THE JEFFEREY S. MARKS SEPARATE PROPERTY
TRUST, et al.

vs.

HARB FAMILY TRUST, et al.

Case

No.: 21STCV40738

Hearing Date: July 20, 2026

Plaintiff's motion to compel further responses from Fusion to Form Interrogatories—General (Set Two) Nos. 8.1-8.8, 9.2, and 17, Special Interrogatories (Set Two) Nos. 17, 18, 22, 24, 26, 28, 34–35, 38, 44–48, and 50–53, and Requests for Production of Documents Nos. 13–29 is GRANTED. Responses due within 20 days.

On 11/4/2021, the Jeffrey S. Marks

Separate Property Trust established under the Jeffery and Loretta Marks Family Trust, Jeffrey S. Mark as trustee, the Mae Durant family Trust, and South Main Street Properties, LLC (collectively, Plaintiffs) initiated this action.

On

4/23/2024, Plaintiffs filed a verified fourth amended complaint (4AC) against the Harb Family Trust dated 11/1/1996, the Irrevocable Trust of Chou Bo Chan Chiu (1997) for the benefit of Samson Chiu, and Fusion Investments, LLC (Fusion) alleging: (1) declaratory relief; and (2) quiet title-adverse possession.

On

10/9/2025, Cross-Complainant Fusion Investments (Fusion) filed a first amended cross-complaint (FAXC), alleging: (1) specific performance; (2) contribution of maintenance costs; (3) breach of written contract; and (4) negligent interference with prospective economic advantage.

On 5/15/2026, Plaintiff South Main

Street moved to compel further responses from Fusion to Plaintiff's Form Interrogatories—General to Defendant, Set Two, Nos. 8.1-8.8, 9.2, and 17.1 (the FROGs); Plaintiff's Special Interrogatories to Defendant, Set Two, Nos. 17, 18, 22, 24, 26, 28, 34–35, 38, 44–48, and 50–53 (the SROGs); Plaintiff's Requests for Production of Documents to Defendant, Nos. 13–29 (the RFPs).

Discussion

Plaintiff argues good cause exists

to compel further responses to the Subject Discovery because Defendant's responses are either evasive, incomplete, or fail to identify whether it would comply with the inspection demand, whether a diligent search and reasonable inquiry was made, whether documents never existed, have been destroyed, have been lost, misplaced or stolen.

After review, the Court agrees. For

example, SROG No. 24 asks: "Describe each instance where any vehicle authorized by Fusion Investments, LLC was prevented from accessing the ALLEY." Fusion responded: "Objection, this request is compound, overbroad and unduly burdensome. Moreover, this request seeks information that is neither relevant nor reasonably calculated to lead to admissible evidence. Without waiving these objections, there is no dispute that the gates/fences have been present since

Responding Party purchased its property. Even Plaintiff admits in its verified pleadings that such gates/fences restricted access to the alley.”

Fusion’s generalized statement regarding the existence of gates does not address whether any vehicle was actually prevented from accessing the alley.

Similarly, RFP No. 18 asks: RESPONSE TO REQUEST FOR PRODUCTION NO. 18: “Produce all DOCUMENTS that support the contentions made at Paragraph 32 of YOUR First Amended Cross-Complaint, which states: “As a direct and proximate result of Cross Defendants’ actions in failing to remove the Gates, FUSION has been unable to lease its property to multiple prospective tenants, the value of 3310 S. Main had gone down, and FUSION has been damaged in an amount to be determined at trial.”

Fusion responded: “Responding Party agrees to do a diligent search of its records and produce all nonprivileged documents within its custody or control that are responsive to this Request herewith. However, many prospective tenants’ information and identity may have been subject to NDA’s with Fusion’s broker, so disclosure of any related communications may be restricted due to such NDA’s. Fusion is investigating further towards such ends.”

A conditional statement that it will conduct a future search and produce documents is not a code-compliant response under CCP section 2031.210.

Based on the foregoing, Plaintiff’s motion to compel further responses from Fusion to Form Interrogatories—General to Defendant, Set Two, Nos. 8.1-8.8, 9.2, and 17, Special Interrogatories to Defendant, Set Two, Nos. 17, 18, 22, 24, 26, 28, 34–35, 38, 44–48, and 50–53, and Requests for Production of Documents to Defendant, Nos. 13–29 is granted.

It is so ordered.

Dated:
July , 2026

Hon. Jon R. Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative.

If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.